Worked glass and crystal in pieces, with or without mountings or decorations.
Advertisements, calendars and price lists on single sheets (prohibited after January 1, 1948).

(R. S. 161, 396, 398; secs. 304, 309, 42 Stat. 24, 25, 48 Stat. 943, 5 U. S. C. 22, 369, 372)

[SEAL] ROBERT E. HANNEGAN,
Postmaster General.

[F. R. Doc. 47-9319; Filed, Oct. 16, 1947; 8:46 a. m.]

TITLE 41—PUBLIC CONTRACTS

Chapter II—Division of Public Contracts, Department of Labor

PART 201—GENERAL REGULATIONS

ADMINISTRATIVE EXEMPTIONS

Pursuant to the authority vested in me by section 6 of the Walsh-Healey Public Contracts Act (act of June 30, 1936; 49 Stat. 2036; 41 U. S. C., 35-45), § 201.603 (7 F. R. 3992) is hereby amended by adding a new paragraph to be designated as (e), to read as follows:

§ 201.603 *Administrative exemptions.*

* * *

(e) Contracts awarded to sales' agents or publisher representatives, for the delivery of newspapers, magazines or periodicals by the publishers thereof.

This amendment shall become effective upon publication in the FEDERAL REGISTER.

(Sec. 6, 49 Stat. 2038; 41 U. S. C. 40)

Signed at Washington, D. C., this 9th day of October 1947.

L. B. SCHWELLENBACH,
Secretary of Labor.

[F. R. Doc. 47-9315; Filed, Oct. 16, 1947; 8:47 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

PART 162—LIST OF ORDERS CREATING AND MODIFYING GRAZING DISTRICTS

CONSOLIDATING OREGON GRAZING DISTRICTS NOS. 3 AND 4

CROSS REFERENCE: For order affecting the tabulation contained in § 162.1, see Federal Register Document 47-9312 under Department of the Interior in the Notices Section, *infra*, consolidating Oregon Grazing Districts Nos. 3 and 4.

[Circular 1657]

PART 200—MINERAL DEPOSITS IN ACQUIRED LANDS AND UNDER RIGHTS OF WAY

OIL AND GAS LEASING IN LANDS UNDER RIGHTS OF WAY

Sec.
200.80 Lands in and under railroad and other rights of way.
200.81 Application for lease.
200.82 Owner of adjoining land allowed to submit bid.
200.83 Term of lease.
200.84 Royalties.
200.85 Form of lease.
200.86 Form of agreement to pay compensatory royalty.
200.87 Form of bond.

AUTHORITY: §§ 200.80 to 200.87, inclusive, issued under sec. 6, 46 Stat. 374; 30 U. S. C. 306.

§ 200.80 *Lands in and under railroad and other rights of way.* The act of May 21, 1930 (46 Stat. 373; 30 U. S. C. 301-306) authorizes the Secretary of the Interior to lease deposits of oil and gas in and under railroad and other rights of way acquired under any law of the United States. The right of lease is restricted to the owner of the right of way, or his assignees.

§ 200.81 *Application for lease.* No particular form of application for lease of land in a right of way will be required. Application for lease must be filed in the land office in the district in which the right of way is situated, or in the Bureau of Land Management, where there is no district land office, by the owner of the right of way or by his assignee and be accompanied by a filing fee of $10, and, if filed by an assignee, by a duly executed assignment of the right to lease.

The application should detail the facts as to the ownership of the right of way, and of the assignment if the application is filed by an assignee; the development of oil and gas in adjacent or nearby lands, the location and depth of the wells, the production, and the probability of drainage of the deposits in the right of way. Since rights of way are of record in the Bureau of Land Management, a description by metes and bounds is not necessary or required, but each legal subdivision through which the portion of the right of way desired to be leased extends should be described.

§ 200.82 *Owner of adjoining land allowed to submit bid.* After the Director, Bureau of Land Management, has determined that a lease of a right of way or any portion thereof is consistent with the public interest, either upon consideration of an application for lease or on his own motion, the manager of the district land office will be directed to serve notice on the owner or lessee of the adjoining lands, as provided in section 3 of the act of May 21, 1930 (46 Stat. 374; 30 U. S. C. 303), allowing him 30 days or such other time as may be provided in the notice within which to submit an offer or bid of the amount or percentage of compensatory royalty such owner or lessee will agree to pay for the extraction through wells on his adjoining land of the oil and gas under and from such right of way. Notice to the owner of the right of way will be given at the same time allowing him opportunity within the same period to submit a bid or offer as to the amount or percentage of royalty he will pay if a lease is awarded to him.

Award of lease to the owner of the right of way, or of a contract for the payment of compensatory royalty by the owner or lessee of the adjoining lands, will be made to the bidder whose offer is determined to be to the best advantage to the United States, considering the amount of royalty to be received and the better development of the oil and gas deposits in the right of way under the respective means of production and operation.

§ 200.83 *Term of lease and of compensatory royalty agreement.* The term of the lease will be for a period of not more than twenty years, and the compensatory royalty agreement will be for the period necessary to reasonably extract all oil and gas from the right of way.

§ 200.84 *Royalties.* The royalty to be charged will be fixed by the Director, Bureau of Land Management, after consideration of all the facts and circumstances in each case, but will not be less than 12½ per cent.

§ 200.85 *Form of lease.* The lease issued to the owner of the right of way or assignee of such owner will be substantially Form 4-213 modified to conform to the requirements of the law and these regulations.

§ 200.86 *Form of agreement to pay compensatory royalty.* The agreement with the owner or lessee of the adjoining land to pay compensatory royalty for the extraction through wells on his adjoining land of the oil and gas in or under the right of way will be substantially Form 4-1086.

§ 200.87 *Form of bond.* The bond required under section 2 (a) of the lease and by the contractor under agreement to pay compensatory royalty, should be substantially Form 4-208g.

CROSS REFERENCE: For operating regulations see 30 CFR 221.

FRED W. JOHNSON,
Director.

Approved: October 10, 1947.

C. GIRARD DAVIDSON
Assistant Secretary of the Interior.

[F. R. Doc. 47-9311; Filed, Oct. 16, 1947; 8:46 a. m.]

Appendix—Public Land Orders

[Public Land Order 414]

COLORADO

REVOCATION OF EXECUTIVE ORDER NO. 5089 OF APRIL 9, 1929, WITHDRAWING TEMPORARILY PUBLIC LANDS FOR CLASSIFICATION AND IN AID OF LEGISLATION

By virtue of the authority contained in section 1 of the act of June 25, 1910 c. 421, 36 Stat. 847 (43 U. S. C. 141), and pursuant to Executive Order No. 9337 of April 24, 1943 (8 F. R. 5516), it is ordered as follows:

Executive Order No. 5089 of April 9, 1929, temporarily withdrawing the hereinafter described lands in Colorado, for classification and in aid of legislation, is hereby revoked.

This order shall not otherwise become effective to change the status of such lands until 10:00 a. m. on December 12, 1947. At that time the lands shall, subject to valid existing rights and the provisions of existing withdrawals, become

subject to application, petition, location, or selection as follows:

(a) *Ninety-day period for preference-right filings.* For a period of 90 days from December 12, 1947, to March 11, 1948, inclusive, the public lands affected by this order shall be subject to (1) application under the homestead or the desert land laws, or the small tract act of June 1, 1938 (52 Stat. 609, 43 U. S. C. 682a), as amended, by qualified veterans of World War II, for whose service recognition is granted by the act of September 27, 1944 (58 Stat. 747, 43 U. S. C. 279–283), subject to the requirements of applicable law, and (2) application under any applicable public-land law, based on prior existing valid settlement rights and preference rights conferred by existing laws or equitable claims subject to allowance and confirmation. Applications by such veterans shall be subject to claims of the classes described in subdivision (2).

(b) *Twenty-day advance period for simultaneous preference-right filings.* For a period of 20 days from November 22, 1947, to December 11, 1947, inclusive, such veterans and persons claiming preference rights superior to those of such veterans, may present their applications, and all such applications, together with those presented at 10:00 a. m. on December 12, 1947, shall be treated as simultaneously filed.

(c) *Date for non-preference-right filings authorized by the public-land laws.* Commencing at 10:00 a. m. on March 12, 1948, any of the lands remaining unappropriated shall become subject to such application, petition, location, or selection by the public generally as may be authorized by the public-land laws.

(d) *Twenty-day advance period for simultaneous nonpreference-right filings.* Applications by the general public may be presented during the 20-day period from February 21, 1948, to March 11, 1948, inclusive, and all such applications, together with those presented at 10:00 a. m. on March 12, 1948, shall be treated as simultaneously filed.

Veterans shall accompany their applications with certified copies of their certificates of discharge, or other satisfactory evidence of their military or naval service. Persons asserting preference rights, through settlement or otherwise, and those having equitable claims, shall accompany their applications by duly corroborated affidavits in support thereof, setting forth in detail all facts relevant to their claims.

Applications for these lands, which shall be filed in the District Land Office at Denver, Colorado, shall be acted upon in accordance with the regulations contained in § 295.8 of Title 43 of the Code of Federal Regulations (Circular No. 324, May 22, 1914, 43 L. D. 254), and part 296 of that title, to the extent that such regulations are applicable. Applications under the homestead laws shall be governed by the regulations contained in Parts 166 to 170, inclusive, of Title 43 of the Code of Federal Regulations and applications under the desert land laws and the small tract act of June 1, 1938, shall be governed by the regulations contained in Parts 232 and 257, respectively, of that title.

Inquiries concerning these lands shall be addressed to the District Land Office at Denver, Colorado.

The lands affected by this order are described as follows:

SIXTH PRINCIPAL MERIDIAN

T. 1 N., R. 75 W.,
sec. 31, N½ and N½S½.
T. 1 N., R. 76 W.,
sec. 1, E½;
secs. 12, 13, 24, and 25;
sec. 31, SW¼NW¼, NW¼SW¼, and S½ SW¼;
sec. 33, NE¼NE¼.
T. 2 N., R. 76 W.,
sec. 25, SW¼SE¼.
T. 2 N., R. 77 W.,
sec. 5, W½NW¼;
secs. 6 and 7.
T. 3 N., R. 77 W.,
secs. 20 and 21.
T. 7 N., R. 77 W.,
sec. 31, lots 2, 3, and 4.
T. 2 N., R. 78 W.,
sec. 12.
T. 6 N., R. 78 W.,
sec. 1;
sec. 2, E½, NW¼NW¼, and E½NW¼.
T. 7 N., R. 78 W.,
sec. 35.
T. 6 N., R. 80 W.,
sec. 25, S½;
sec. 26, S½;
sec. 35, E½.
T. 1, S., R. 75 W.,
sec. 10, W½NE¼NW¼SE¼, NW¼NW¼ SE¼, N½SW¼NW¼SE¼, and NW¼ SE¼NW¼SE¼;
sec. 15, E½SE¼.
T. 1 S., R. 76 W.,
sec. 6, lots 1, 10, 11, and 13;
sec. 8, N½SW¼ and W½SE¼;
sec. 31, lot 4, E½SW¼, and W½SE¼.
T. 1 S., R. 77 W.,
sec. 1, lots 3 and 4;
sec. 2, lot 5, SW¼NW¼, W½SW¼, NE¼ SW¼, and NW¼SE¼;
sec. 24, SE¼SE¼;
sec. 35, E½SE¼.
T. 1 S., R. 78 W.,
sec. 21, S½;
secs. 22, 27, 28, and 33;
sec. 34, N½, W½SW¼, SE¼SW¼, and SE¼.
T. 1 S., R. 79 W.,
sec. 18, lots 11, 12, 13, 14, 15, 16, 17, and 18.

The areas described, including both public and nonpublic lands, aggregate 14,514.20 acres.

Some of the above-described lands have been patented and some are included in outstanding withdrawals which prevent the filing of applications. The only lands which will become subject to application under this order are the following, which are within Colorado Grazing District No. 2, established April 8, 1935:

SIXTH PRINCIPAL MERIDIAN

T. 7 N., R. 77 W.,
sec. 31, lots 2, 3, and 4.
T. 2 N., R. 78 W.,
sec. 12.
T. 6 N., R. 78 W.,
sec. 1;
sec. 2, E½, NW¼NW¼, and E½NW¼.
T. 7 N., R. 78 W.,
sec. 35, NW¼NE¼, S½NE¼, W½, and SE¼.
T. 6 N., R. 80 W.,
sec. 25, S½;
sec. 26, S½;
sec. 35, E½,

and the following which are not situated within a grazing district:

SIXTH PRINCIPAL MERIDIAN

T. 1 S., R. 76 W.,
sec. 6, lots 1, 10, 11, and 13.
T. 1 S., R. 77 W.,
sec. 2, lot 5, SW¼NW¼, W½SW¼, NE¼ SW¼, and NW¼SE¼.
T. 1 S., R. 78 W.,
sec. 21, W½SW¼;
sec. 28, SE¼SW¼;
sec. 33, NE¼NE¼.
T. 1 S., R. 79 W.,
sec. 18, lots 11, 12, 13, 14, 15, 16, 17, and 18.

The above described lands are rough and non-tillable in character, supporting such vegetation as sagebrush and aspen with a small amount of conifer timber.

C. GIRARD DAVIDSON,
Assistant Secretary of the Interior.

OCTOBER 10, 1947.

[F. R. Doc. 47–9308; Filed, Oct. 16, 1947; 8:46 a. m.]

TITLE 49—TRANSPORTATION AND RAILROADS

Chapter I—Interstate Commerce Commission

[S. O. 778]

PART 95—CAR SERVICE

RAILROAD OPERATING REGULATIONS FOR CAR MOVEMENT

At a session of the Interstate Commerce Commission, Division 3, held at its office in Washington, D. C., on the 10th day of October A. D. 1947.

It appearing, that cars loaded with property are being unduly delayed in terminals and in placement at industries in such terminals; empty cars are being delayed in terminals and in removal from industries in terminals; empty cars are being held at points for prospective loading, insufficient checks or no checks are being made of yard tracks and other tracks upon which cars are ordinarily stored held or placed for loading and unloading; cars are delayed in movement to repair tracks after being taken out of service for repairs or being carded for repairs; all of which impedes and diminishes, the use, control, supply, movement, distribution, exchange, and interchange, and return of such cars; in the opinion of the Commission an emergency exists requiring immediate action to alleviate the shortage of all types of cars in all sections of the country. It is ordered, that:

§ 95.778 *Car movement*—(a) *Carrier responsibility.* Each common carrier will be held responsible for car service including the use, control, supply, movement, distribution, exchange, interchange and return of cars.

(b) *Carrier officials' responsibility.* The division superintendent in charge of each terminal under his jurisdiction or supervision, or if no division superintendent is in charge the general manager of each railroad will be held responsible for car service at each terminal and for the proper observance of the rules prescribed by this section.